Tentative Rulings for July 10, 2026
Department 6

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 830 3643

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304207	GREEN MAGNOLIA LLC vs SUNLIGHTEN, INC	Application of Thomas Wagstaff, Jr. for Admission Pro Hac Vice

Tentative Ruling:

California Business and Professions Code §6125 provides that only active members of the California State Bar shall practice law in this state. California Rule of Court 9.40 allows state courts to give permission for out-of-state attorneys who are not licensed in California to appear on behalf of a party in a particular case as counsel *pro hac vice*. The court can only permit appearances that are made in association with an active California State Bar member who acts as the attorney of record for the party.

CRC 9.40 requires that an application to appear *pro hac vice* be made in writing and be verified. The application must state the applicant attorney's office and residence addresses; the courts to which the attorney has been admitted to practice and the dates of admission; that the attorney is a member in good standing in those courts; that the attorney is not currently suspended or disbarred in any court; the title of the court and cause in which the attorney has filed an application to appear *pro hac vice* in California within the preceding two years, the date of each application, and whether or not it was granted; and the name, address, and telephone number of the active member of the State Bar of California who is attorney of record. No person is eligible to appear as counsel *pro hac vice* if they are a resident of California; are regularly employed in California; or are regularly engaged in substantial business, professional, or other activities in California.

It appears to the Court that all the above requirements have been met.

The Application to appear *pro hac vice* must be served on the San Francisco office of the State Bar of California, which must also be paid a fee not exceeding $50.00 to defray administration expenses. Absent special circumstances, repeated appearances by any attorney under the Rule is a cause for denial of an application (*Walter E. Heller Western, Inc. vs. Superior Court (County of Los Angeles)* (1980) 111 Cal. App. 3d 706, 710). While appearing *pro hac vice*, an out-of-state attorney submits to the jurisdiction of state courts regarding state laws governing attorney conduct to the same extent as a California State Bar member. A trial court's inherent powers include the authority to revoke an attorney's *pro hac vice* status when that attorney has engaged in conduct that would be sufficient to disqualify a California attorney (*Sheller vs. Superior Court of Los Angeles County* (2008) 158 Cal. App. 4th 1697, 1716).

It does not appear that the required fee has been submitted to the State Bar of California, nor has the application been served on the State Bar.

For this reason, the application is denied without prejudice.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407151	HENDERSON VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL

Tentative Ruling:

Moving party: Defendant American Honda Motor Co., Inc.
Responding party: Plaintiff Amber Henderson

Plaintiff Amber Henderson brings this Song-Beverly action regarding a 2024 Honda Accord Hybrid (the "Vehicle") that developed defects and nonconformities during the applicable warranty period. On December 31, 2024, Plaintiff filed this lawsuit against Defendant American Honda Motor Co., Inc. (or "Honda") for 3 causes of action:

(1) Violation of Song-Beverly Act – Breach of Express Warranty
(2) Violation of Song-Beverly Act – Breach of Implied Warranty
(3) Violation of the Song-Beverly Act section 1793.2(b)

Honda now moves to compel a vehicle inspection. On April 30, 2026, Honda served a Notice of Vehicle Inspection (the "Notice") for inspection on June 15, 2026. (Williams Decl., ¶8, Exh. F.) Six days prior to the inspection date, Plaintiff emailed Honda claiming unavailability on June 15, 2026. (*Id.* at ¶9, Exh. G.) On June 10, 2026, Plaintiff served an untimely objection stating she would not produce the vehicle on the noticed date. (*Id.* at ¶10, Exh. H.) After the Court's denial of Honda's ex parte application, on June 12, 2026, Honda accepted Plaintiff's June 23, 2026 date for inspection. (*Id.* at ¶¶11, 13, Exhs. I, J.) The next day, Plaintiff informed Honda June 23, 2026 was no longer available for inspection. (*Id.* at ¶14, Exh. K.) Honda asserts good cause exists given Plaintiff placed the Vehicle's condition at issue. Plaintiff waived any objection to Honda's demand for inspection by failing to timely object.

In opposition, Plaintiff claims Defendant failed to meet and confer in good faith. As to the June 23, 2026 date, Plaintiff asserts she offered that date after objecting to the unilateral date noticed by Defendant, but by the time Defendant was willing to accept June 23, 2026, it was no longer available. Defendant's motion was filed six days after the discovery cut-off date based on the July 20, 2026 trial date. Plaintiff contends Defendant failed to establish good cause.

In reply, Honda generally repeats its arguments. As to the discovery cut off argument, Honda maintains this does not defeat the motion because Code of Civil Procedure section 2031.010 expressly authorizes a party to demand inspection of tangible things, e.g. the Vehicle. Plaintiff's untimely objection to the Notice is a waiver to the objection to the inspection demand. The waiver includes the objection Plaintiff now raises in opposition, specifically that the inspection was noticed for a date after the discovery cutoff.

Trial is currently set for July 10, 2026.

Analysis

I. Meet and Confer

A motion to compel further response to a request for production "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310, subd. (b)(2).) A meet and confer declaration "shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.)

Based on a review of the correspondence between the parties, including after the ex parte application hearing on June 17, 2026, further meet and confer efforts will not aid in resolution of the parties' dispute.

II. Standard

A party may file a motion compelling further responses to an inspection demand if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310.) Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at subd. (c).) Failure to comply with the discovery deadline "is only 'jurisdictional' in the sense that it renders the court without authority to rule on motions to compel other than to deny them." (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

III. Merits

a. Timeliness of Motion/Discovery Cut-Off

Generally, a party is entitled to complete non-expert discovery on or before the 30th day, and motions concerning that discovery are heard on or before the 15th day, before the initial date set for trial. (Code Civ. Proc., § 2024.020, subd. (a).) Similarly, expert discovery is to be completed on or before the 15th day, and motions concerning expert discovery are to be completed on or before the 15th day, and motions concerning expert discovery are to be heard on or before the 10th day before the initial trial date. (Code Civ. Proc., § 2024.020, subd. (b).)

The parties do not dispute that the discovery cut-off dates and deadlines are based on the July 10, 2026 jury trial date. (Code Civ. Proc., § 2024.020, subd. (a).) Thus the discovery cut off in the present case is June 10, 2026, and the motion must be heard by Thursday June 25, 2026. "[A] continuance or postponement of the trial date **does not operate to reopen discovery proceedings**." (Code Civ. Proc., § 2024.020, subd. (b).) Accordingly, Defendant's motion is **UNTIMELY**.

Nevertheless, under section 2024.050, subdivision (a), a party may seek leave of court to reopen discovery after a new trial date has been set. The granting or denial of a motion to reopen is at the Court's discretion. (Code Civ. Proc., § 2024.050, subd. (b).)

In the published portion of *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1571, the court concluded the trial court "botched its responsibilities under the Civil Discovery Act and prejudicially abused its discretion in granting [plaintiff's] motion to compel after the discovery motion cutoff date when [plaintiff] had not moved to reopen discovery under Code of Civil Procedure section 2024.050." The Court further held that a trial court's discretion to hear a discovery motion after the discovery motion cutoff date "is governed by section 2024.050, which requires the court to consider various factors in determining whether to hear a discovery motion after the cutoff date. Because the trial court [] did not require [plaintiff] to file a motion to reopen discovery under section 2024.050 before, or simultaneously with, filing its motion to compel, there is no indication in the record that the court considered any of the relevant factors." (*Ibid.*)

Given it is past the discovery cutoff date and there is no motion pending to reopen discovery, it would be an abuse of discretion for the Court to consider Honda's motion. The motion, therefore, is **DENIED** as untimely.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506404	WARREN VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION TO COMPEL FURTHER DISCOVERY

Tentative Ruling:

Moving party: Plf, Kesha Warren
Represented by: Quill & Arrow, LLP

Responding party: Def, Volkswagen Group of America, Inc. (VW)
Represented by: Squire Patton Boggs (US), LLP

Plaintiff, Kesha Warren, alleges that on 11/18/24 she leased a 2024 Audi Q8, which was accompanied by an express warranty issued by Defendant, Volkswagen Group of America, Inc. (VW). She alleges the vehicle was delivered to her with serious defects and nonconformities to warranty as to the electrical and structural systems that impair the use, value, and/or safety of the vehicle. Plaintiff presented the vehicle to an authorized repair facility but, they were unable to conform the vehicle to warranty after a reasonable number of repair attempts. Plaintiff filed her Complaint on 11/5/25 alleging three causes of action for violations of the Song Beverly Consumer Warranty Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and, 3) violation of Civil Code § 1793.2(b).

Plaintiff, Kesha Warren, brings this motion to compel further responses to Requests for Production of Documents (Set One) [RPD] Nos. 1-31 from Defendant, VW, and to strike the objections. (CCP § 2031.310.) Plaintiff asserts that the objections are meritless, responses are inadequate and not Code-compliant, and many responsive documents were not produced.

Defendant, VW, opposes the motion arguing that VW timely provided responses and 757 pages of responsive documents; that before VW could respond to Plaintiff's meet and confer letters, this motion was filed, which shows a failure to engage in meaningful meet and confer efforts; that after this motion was filed, VW negotiated a stipulation and obtained a protective order to restrict the use and dissemination of VW's confidential and proprietary information; that confidential and proprietary documents will be produced prior to the hearing; that documents were produced as to all but, RPD No. 30, which remains in dispute; and the objections are warranted.

The Reply asserts that VW never supplemented its document production; never provided a privilege log; has not provided "core" documents including warranty claim submissions regarding the subject vehicle; that Plaintiff established good cause but, VW failed to support its objections; and, that policy and training as to evaluating vehicles for repurchase or replacement are not privileged.

Analysis:

MOTION TO COMPEL FURTHER RESPONSES TO RPDs

Where responses to requests for production of documents have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion to compel further responses. (CCP § 2031.310.)

Plaintiff also brings this motion pursuant to CCP § 2031.320(a), which provides that where a responding party *agrees* to permit inspection of documents, and then fails to do so, a motion to compel compliance may be made on noticed motion. There is no fixed time limit on such a motion, and no attempt to resolve informally need be shown. (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1508 citing CCP § 2031.320(a); see *Standon Co., Inc. v. Sup. Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

<u>Meet and Confer Efforts</u>

A motion to compel a further response to document production requests must be accompanied by a meet and confer declaration. (CCP § 2031.310(b).) The declaration must state facts showing a "reasonable and good faith attempt, *either in person, by telephone, or by videoconference*" to resolve informally the issues presented by the motion before filing the motion. (CCP § 2016.040(a).) "The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. It also enables parties and counsel to avoid sanctions that are likely to be imposed if the matter comes before the court." (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1159 citing *Steward v. Colonial Western Agency, Inc.* (2001) 87 Cal.Ap.4th 1006, 1016.)

On 1/27/26, Plaintiff propounded the subject RPD Nos. 1-31. (Dec.Dean ¶ 19, Ex. "6".) On 3/2/26, VW responded to the RPDs asserting objections, and documents but, failed to produce many responsive documents. (*Id.* ¶ 20, Ex. "7".) On 3/19/26, Plaintiff's counsel sent a meet and confer letter to defense counsel detailing the deficiencies in VW's responses. (*Id.* ¶ 22, Ex. "8".) VW did not respond to the letter. (*Id.* ¶ 23.) On 3/27/26, Plaintiff's counsel sent a further meet and confer letter. (*Id.* ¶¶ 24, 27, Ex. "9".) VW did not respond to this letter either. (*Id.* ¶ 28.) Therefore, Plaintiff concludes despite meet and confer efforts, the parties have reached an impasse and VW will not likely supplement their responses without a court order. (*Id.* ¶ 29.)

Importantly, Plaintiff's meet and confer efforts were insufficient because she was required to meet and confer "in person, by telephone, or by videoconference", which did not occur. Nevertheless, the Court will reach the merits of the motion.

<u>Good Cause</u>

Nonetheless, Plaintiff has demonstrated good cause to seek the subject documents. Civil Code §1794(c) authorizes a civil penalty in lemon law cases "[i]f the buyer establishes that the failure to comply was willful." A violation is willful if the manufacturer knew of its obligations but intentionally failed to fulfill them. (*Schreidel v. American Honda Motor Co.* (1995) 34 Cal.App.4th 1242, 1249-1250.) Thus, if VW was aware of the types of problems in its 2024 Audi Q8 vehicles but, failed to comply with its obligations under Song-Beverly, then VW could be found to have willfully violated the statute.

<u>On the Merits</u>

Plaintiff asserts that RPD Nos. 1-14 concern only her vehicle. For instance, RPD No. 1 asks for all documents regarding the subject vehicle that are within VW's Customer Relations Center.

Plaintiff asserts that RPD Nos. 15-22 seek VW's policies and procedures for handling SBA cases. RPD Nos. 23-29 seek VW's warranty policy and procedures used for handling *warranty* issues. For instance, RPD No. 15 seeks documents that evidence, describe, or relate to VW's rules, policies, or procedures since 2020 concerning the issuance of refunds to buyers or providing replacement vehicles in California under the SBA.

Finally, Plaintiff asserts that RPD Nos. 30-31 seek documents concerning similar customer complaints in other 2024 Audi Q8 vehicles.

In response, VW asserted various objections as to each RPD, which are addressed collectively as VW did in its separate statement. Plaintiff asserted objections on grounds that VW's responses failed to indicate that it will produce *all documents and* *things* that are in its possession, custody, or control. Instead, VW only agreed to produce documents that it has no objection to, which is not Code-Compliant. (CCP §§ 2031.210 – 2031.240.) In addition, VW's responses do not affirm that a *diligent search and a reasonable inquiry were made* or that an inability to comply is due to an item/category having *never existed, has been destroyed, lost, misplaced, or stolen, or never has been, or is no longer in the possession, custody, or control of responding party* and the *name and address* of anyone believed to have such an item/category. To the extent the written responses are not Code-compliant, further written responses are required.

VW also objects that the RPDs fail to specifically describe each individual item or reasonably particularize each category of item. (CCP § 2031.030(c)(1).) However, VW has not explained how the RPDs are not straightforward and understandable.

Further, VW objected on grounds that the RPDs are vague, and ambiguous[1]; overly broad[2]; unduly burdensome and oppressive[3]; seeks information that is irrelevant or is not reasonably calculated to lead to the discovery of admissible evidence[4]; premature disclosure of expert information[5]; seeks documents that are protected as

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[1] VW has not specified any particular term that is objectionable. Moreover, this objection is only valid where the matter is unintelligible, which is not the case. (*Deyo v. Kilbourne* (1978) 78 Cal.App.3d 771, 783.)

[2] VW argues that the requests are overly broad. However, VW has not provided any specific showing. To the extent that they are overly broad in scope, they can be limited. For instance, one limitation may be made as to complaints by consumers in California regarding the same defects as alleged in vehicles of the same year, make and model as Plaintiffs' vehicle during a particular time period.

[3] As to VW's objection on the ground that the request is unduly burdensome, a discovery burden is "undue" only if the inconvenience and expense of responding *clearly outweighs* the benefits *likely* to be obtained if the requests are answered. (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2025) §8:1475.13, citing CCP §2031.210(d).) The objecting party is required to provide evidence to support its claim of undue or excessive burden that shows the amount of work required, otherwise, the trial court has nothing "upon which to base a comparative judgment that any responsive burden would be undue or excessive, relative to the likelihood of admissible evidence being discovered." (*Id.* citing *Williams v. Sup. Ct. (Marshalls of CA, LLC)* (2017) 3 Cal.5th 531, 549-550.) Here, VW has made no such showing.

[4] Information should be regarded as relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (See *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611; *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.) Importantly, admissibility is not the test, and information, unless privileged, is discoverable if it is reasonably calculated to lead to the discovery of admissible evidence. (*Lipton*, 48 Cal.App.4th at 1611.) "Thus, the scope of permissible discovery is one of reason, logic and common sense." (*Id.* [citation and internal quotation marks omitted].) This information may assist Plaintiff in proving his SBA claims and supporting civil penalties.

[5] VW has not explained how these requests seek expert information. In fact, nothing in the requests seek expert information, and no experts have been designated in this case. As a result, this objection is unwarranted.

confidential, proprietary, or commercially sensitive[6]; trade secret[7]; and, seeks information protected by the attorney-client privilege and attorney work product doctrine[8]. Notably, other vehicle information is discoverable in this case to the extent it concerns the same year, make, and model as the subject vehicle concerning the same defects in California.[9] VW also asserts the RPDs seek documents that are equally

[6] VW also asserts an objection that the requests seek information that may be commercially sensitive, confidential and proprietary. VW has not explained what this information is, and how the information sought is protected. VW should be required to produce responsive documents subject to the stipulated protective order, which is already in place.

[7] As to VW's objection that the information sought is trade secret, it has not explained how or why the information sought is protected. Trade secret "means information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy." (Civil Code §3426.1(d).) The party asserting trade-secret objection has the burden to establish its existence. (*Bridgestone/Firestone, Inc. v. Sup. Ct*. (1992) 7 Cal.App.4th 1384, 1390.) VW provides no evidence demonstrating the existence of a trade secret as to the subject requests. In addition, even if trade secret information is implicated, VW could be required to produce responsive documents subject to the protective order filed on 5/21/26.

[8] The attorney-client privilege permits the client, whether or not a party, to refuse to disclose, and to prevent another from disclosing, a *confidential communication between client and lawyer*. (Evid. Code § 954.)

CCP §2018.030 states the attorney "work product" doctrine, which limits the conditions under which "work product" is discoverable. Work product includes the attorney's evaluation or interpretation of the law or facts. (*Mack v. Sup. Ct. (State of Calif.)* (1968) 259 Cal.App.2d 7, 10.) CCP §2018.030(a) provides an absolute privilege for an attorney's core work, defined as any "writing reflecting an attorney's impressions, conclusions, opinions, or legal research or theories." (*Izazaga v. Superior Court* (1991) 54 Cal.3d 356, 381-382.)

CCP §2018.030(b) also provides a conditional or qualified privilege for general work product and bars discovery of other aspects of an attorney's work product unless denial of discovery would unfairly prejudice a party or result in an injustice. (*State Farm Fire & Cas. Co. v. Superior Court* (1997) 54 Cal.App.4th 625, 540.) The call of the subject requests do not seek attorney-client communications, or any kind of attorney work product. Nonetheless, a privilege log may be required.

[9] In this case, relevant discovery is limited to the alleged defects in the same year, make, and model as the subject vehicle in California. Moreover, as to similar information relating to the same year, make and model as the subject vehicle, such information is discoverable. (See *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 971 [defendant was ordered during discovery to produce documents regarding other similar complaints].) Although *Doppes* was not a discovery decision, it does indicate that information regarding prior complaints is relevant to the litigation. (CCP§ 2017.010 [a party is entitled to anything that "either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence."].)

In *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, the defendant car company argued that the court erred when it denied its motion in limine to preclude evidence of "other vehicles" and non-warranty repairs. The appellate court rejected the argument: [The expert's] "other vehicle" testimony … did not concern simply other vehicles. It was limited to the transmission model Ford installed in plaintiff's truck and other vehicles. [The expert] described what Ford itself had done to notify dealers and technicians about problems with this transmission model. Thus, everything about which he testified that applied to other vehicles applied equally to plaintiff's vehicle. Such evidence certainly was probative and not unduly prejudicial. (*Id.* at p. 154.) While the question in *Donlen* was one of admissibility, the case is instructive with regard to the relevance of information concerning other vehicles. (See also *Jensen v. BMW of North America, LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 562 [allowing discovery regarding similar defects in other vehicles].) This information may assist Plaintiff in proving a violation under the Song Beverly Act, and is therefore, relevant at least to that issue.

available. This objection is meritless, and does not excuse VW from producing documents in its possession, custody, and control. *All of these objections are unwarranted.*

Importantly, as to the subject RPD Nos. 1-14, VW appears to provide statement of compliance specifying certain documents that it agreed to produce. For instance, in RPD No. 1, following the objections, VW asserts that subject to the objections and without waiving them and interpreting the request as excluding privileged attorney-client communications, "all responsive documents in the demanded category that are in the possession, custody, or control of VWGoA and to which no objection has been made will be included in the production." VW then lists certain documents as responsive. VW also asserts that certain documents "will be produced upon execution of a stipulation and protective order" (e.g., RPD No. 15-25, 28-29, 31), which order was granted and filed on 5/21/26. However, VW has apparently not provided supplemental responsive documents since the protective order was filed. (Reply p. 3:20-21.) The Court could clarify whether supplemental responsive documents have been provided. VW has also not provided a privilege log for documents being withheld that are not subject to the protective order (e.g., attorney-client communications.)

Thus, it is unclear whether VW is withholding any documents based on the asserted objections, which are discussed above, and are meritless although it appears documents are being withheld that are responsive to RPD Nos. 26, 27, and 30. As a result, VW is required to provide a further Code-compliant response clarifying whether it has withheld any documents and a privilege log, if necessary. Notably, there is a stipulated protective order in place, which makes the objections based on confidentiality, proprietary, commercially sensitive, and trade secret meritless in this case.

The motion is Granted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600587	COUNTY OF RIVERSIDE VS TORRES	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

This motion for a preliminary injunction is unopposed. Accordingly, the motion is granted in all respects. The proposed order submitted has been signed and ordered filed. Moving party to give notice of ruling.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2603191	SMALLWOOD VS U.S. BANK TRUST COMPANY, NATIONAL ASSOCIATION	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling:

This is a wrongful attempted foreclosure case. On 5/22/2026, Charles and Marla Smallwood ("Plaintiffs") filed their verified complaint against U.S. Bank Trust Company, National Association, Fay Servicing, LLC ("Fay"), and Clear Recon Corp. The complaint asserts a cause of action for (1) violation of Civil Code §§ 2923.55, 2924.11, and 2923.12; and (2) promissory estoppel.

Plaintiffs, who are a married couple, reside at 3418 Boros Blvd, Beamont, California (the "Property"). (Complaint, ¶¶ 1-2.) Defendant U.S. Bank Trust Company is the beneficiary under the 5/18/2018 deed of trust, pursuant to a corporate assignment deed of trust recorded on 12/12/2024. (*Id.* at ¶¶ 3 and 14.) Fay is the loan servicer. (*Id.* at ¶ 4.) In mid-2025, Plaintiffs were notified of a default and a Notice of Trustee's Sale was recorded, setting an initial sale date of 6/18/2025. (*Id.* at ¶¶ 16-19.)

On 12/29/2025, Plaintiffs retained counsel and reported to Defendants that they were seeking a loan modification due to financial hardship. (*Id.* at ¶ 20.) Between January 2026 and March 2026, Plaintiffs and their counsel assembled and submitted a loss mitigation application, submitted on 2/6/2026 to Fay. (*Id.* at ¶¶ 20-23.) Plaintiffs filed for Chapter 13 bankruptcy on 2/17/2026 and supplied proof of same to Fay. (*Id.* at ¶ 26.) On 2/18/2026, Fay advised that the foreclosure was on hold because of the bankruptcy filing. (*Id.* at ¶ 27.)

On 3/2/2026, Plaintiffs updated the loss mitigation packet and Fay reported a new foreclosure sale date of 4/29/2026. (*Id.* at ¶ 28.) On 4/16/2026, Fay denied the loss mitigation/loan modification request and confirmed the 4/29/2026 foreclosure sale date. (*Id.* at ¶ 31.) Plaintiffs appealed, the 4/29/2026 foreclosure sale did not go forward, and Fay denied Plaintiffs' appeal on 5/6/2026. (*Id.* at ¶¶ 32-38.) Fay then communicated a new foreclosure sale date of 5/13/2026 due to the denied appeal. (*Id.* at ¶ 40.) The complaint ultimately accuses Defendant of promissory estoppel and statutory violations based on their pursuit of foreclosure while, "…a complete loss mitigation application and appeal were pending and after promising that the appeal would be reviewed within 30 business days." (*Id.* at ¶ 43.)

Now, Plaintiffs move for a preliminary injunction to prevent Defendants from proceeding with the foreclosure sale. In their initial ex parte requesting a TRO, filed on 6/5/2026, Plaintiffs state the foreclosure sale had been rescheduled for 6/10/2026. The court granted the request for a TRO and set an OSC re: preliminary injunction for hearing on 7/10/2026.

In opposition, Fay argues that there is no threat of imminent harm because the Notice of Trustee's Sale set an initial sale date of 6/18/2025. Fay argues that such a notice is only valid for 365 days and thus, there is currently no valid notice and no ability to go forward with the foreclosure sale. In the alternative, Fay argues Plaintiffs do not show a probability of prevailing on the merits of their claim.

In reply, Plaintiffs argue the request for injunction is not moot because Defendants remain free to record a new Notice of Trustee's Sale the moment the current TRO expires.

<u>ANALYSIS</u>

A. <u>Request for Judicial Notice</u>

Fay requests judicial notice of the 5/8/2025 Notice of Trustee's Sale, setting the initial sale date for 6/18/2025. The notice is attached to the request as Exhibit A.

In *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265 (overturned on other grounds in *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 939 n. 13), the court could "take judicial notice of the of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity." Here, Plaintiffs fail to plead facts or provide evidence contradicting the recorded document attached to the request as Exhibit A. The court GRANTS judicial notice as to Exhibit A.

B. <u>Preliminary Injunction – Merits</u>

The purpose of a preliminary injunction is to preserve the status quo pending a determination on the merits. (*Jamison v. Department of Transportation* (2016) 4 Cal.App.5th 356, 361.) A motion for preliminary injunction must show (1) a probability of prevailing on the merits, and (2) that the balance of hardships favors issuance of the injunction. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1463.) However, "[t]he applicant must demonstrate a real threat of immediate and irreparable injury [citation] due to the inadequacy of legal remedies." (*Triple A. Machine Shop, Inc. v. State of California* (1989) 213 Cal.App.3d 131, 138.)

The issue is Plaintiffs show no threat of immediate or irreparable injury sufficient to grant this motion given Defendant's Exhibit 1. CCP § 526(a)(2) lists the traditional consideration of "irreparable injury." Irreparable harm is often related to the "inadequate legal remedy" (i.e., the damages remedy is inadequate because some immeasurable harm is threatened). But it is also a separate consideration. Relief is unlikely unless someone will be significantly hurt in a way that cannot later be repaired. (*People ex rel. Gow v. Mitchell Brothers' Santa Ana Theater* (1981) 118 Cal.App.3d 863, 870-871.)

Under Civil Code § 2924g(c)(1), there may be postponements of the sale proceedings for any period of time not to exceed a total of 365 days from the date set forth in the notice of sale. In the event that the sale proceedings are postponed for a period or periods totaling more than 365 days, the scheduling of any further sale proceedings shall be preceded by giving a new notice of sale. (Civ. Code § 2924g(c)(2).)

The initial sale date for the Property was set for 6/18/2025. (Fay's Request for Judicial Notice, Exhibit A.) Therefore, the Notice of Trustee Sale has expired as it currently stands, Fay (nor any of the other Defendants) have any ability to go forward with the sale. Plaintiffs fail to show any evidence of an imminent sale of the Property or other imminent harm. While Plaintiffs state that Fay can simply record a new notice once the TRO expires, such a possibility is purely hypothetical at this point. The threat of "irreparable harm" must be imminent as opposed to a mere possibility of harm sometime in the future: "An injunction cannot issue in a vacuum based on the proponents' fears about something that may happen in the future. It must be supported by actual evidence that there is a realistic prospect that the party enjoined intends to engage in the prohibited activity." (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) Plaintiffs' fear of a new notice being recorded is purely hypothetical at this point.

Plaintiffs are thus not entitled to injunctive relief. **The motion is denied.**